

Court No. - 21

Case :- WRIT - C No. - 5926 of 2023

Petitioner :- Rafi Mohammad

Respondent :- Uttar Pradesh Power Corporation Limited And 3 Others

Counsel for Petitioner :- Vindeshwari Prasad, Arvind Kumar Sahu

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Syed Qamar Hasan Rizvi, J.

Counsel for the petitioner is permitted to serve respondents no.1, 2 & 3 through their counsel before this Court.

List as fresh on 28.02.2023.

(Syed Qamar Hasan Rizvi, J.) (Manoj Kumar Gupta, J.)

Order Date :- 21.2.2023

SL

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Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

Counsel for the petitioner states that he has served notice on Sri Mukesh Kumar Singh on behalf of the respondents

Let his name be printed in the cause list

List as fresh on 3.03.2023.

Counsel for the petitioner shall inform Sri Mukesh Kumar Singh about the order passed today in writing.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 28.2.2023

SL

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Petitioner :- Rafi Mohammad

Respondent :- Uttar Pradesh Power Corporation Limited And 3 Others

Counsel for Petitioner :- Vindeshwari Prasad, Arvind Kumar Sahu

Counsel for Respondent :- Mukesh Kumar Singh

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

The impugned recovery is for recovery of electricity dues in a case of theft of electricity.

Sri Mukesh Kumar Singh, learned counsel for the Electricity Department, concedes that the recovery citation has been issued without there being any final assessment order in existence.

The recovery citation is rendered illegal in absence of any final assessment order. Accordingly, it is quashed, with liberty to the respondents to pass a fresh order, strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

The petition stands disposed of accordingly.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 3.3.2023

Jaideep/-